

25SMCV00131 25SMCV00131

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-30

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This is a motion for leave to file a compulsory cross-complaint. Plaintiff is defendant's tenant and sues for various issues including claims that there was mold in the apartment and that plaintiff was eventually constructively evicted by virtue of the living conditions. Defendant seeks to file a cross complaint, also relating to the tenancy. The parties seem to agree that the cross complaint is compulsory. The law on this favors granting the motion. Leave to file a compulsory cross complaint must be granted unless the motion is brought in bad faith. For example, where a cross complainant waited until the eve of trial and deliberately delayed in order to further delay the trial, that could be bad faith. (County of Los Angeles v. Quinn Emmanuel Urquhart & Sullivan, LLP (2025) 115 Cal.App.5th 489.) But a mere delay generally is not bad faith. It might be neglect or the like, but that is not bad faith. The court agrees with plaintiff here that this ought to have been brought sooner. But that is not bad faith. The court sees no tactical advantage from the delay here, and plaintiff argues none. The trial is not until November 2027, so this will have no effect on that. As such, the motion is GRANTED. The cross complaint will be filed as a standalone document within 5 court days. Cross defendant will have the time allowed by law to answer or otherwise respond.